

EUROPEAN MEDICINES AGENCY (EMA) - COMMITTEE ON HERBAL MEDICINAL PRODUCTS (HMPC)
DIRECTIVE 2004/24/EC ON TRADITIONAL HERBAL MEDICINAL PRODUCTS (THMPD)
JURISDICTION: EUROPEAN UNION / INTERNATIONAL REGIMES

Three Regulatory Pathways for Herbal / Ayurvedic Formulations in the European Union:

1. Traditional Herbal Medicinal Product (THMPD - Simplified Registration):

- Applies to herbal medicines with long-standing safety and plausible efficacy.
- Crucial Requirement: The applicant must demonstrate at least 30 years of continuous traditional medicinal use, of which AT LEAST 15 YEARS must be within the European Community / European Union.
- Challenge for Indian Ayurveda: Classical Ayurvedic formulations with thousands of years of use in India often fail the 15-year EU usage requirement unless historical trade or EU clinical presence is documented.

2. Well-Established Use (WEU):

- Full marketing authorization based on bibliographic scientific evidence.
- Requires recognized efficacy and acceptable level of safety demonstrated through published scientific literature over at least 10 years within the EU.

3. Food Supplements:

- Governed under Food Supplements Directive 2002/46/EC.
- Cannot make therapeutic claims; only EFSA-approved botanical health claims allowed.